IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) No. OF 2009

IN THE MATTER OF:

Sri. M.S. Vijayakumar Petitioner

Versus

Smt. Rohini and others Respondents

AFFIDAVIT VERIFYING THE SPECIAL LEAVE PETITION

I, M.S. Vijayakumar, aged 56 years, s/o. late M.C. Subbanna, residing at No.1147, Railway Station Road, Chamarajapuram, Mysore – 570 004, today at New Delhi, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the present Special Leave Petition and as such I am fully conversant with the facts of the case.

2. The contents of the Synopsis and the List of Dates (pages) Special Leave Petition paras 1 to and the I.As respectively have been read by me carefully and I have understood the same, I state that the facts which have been stated therein are true to my knowledge; and no part of it is false; and nothing material has been concealed therefrom.

3. The annexures filed with the Special Leave Petition are all true copies of their respective originals.

Verified at New Delhi on 6th of October 2009.

New Delhi DEPONENT
Date: 6.10.2009

No.of corrections

Identified by me

Advocate

VERIFICATION

I, the abovenamed deponent, do hereby solemnly verify that the contents of the foregoing paragraphs 1 to are true to my knowledge, and that no part of it is false, and nothing material is concealed therefrom.

Verified at Bangalore, on this the 6th day of October 2009.

New Delhi DEPONENT
Date: 6.10.2009

No.of correction

Identified by me:

Advocate

SYNOPSIS AND LIST OF DATES

The petitioner was the 4th defendant in the Original Suit No.208/1991 that the respondents 1 to 6 herein had instituted in the court of the learned Civil Judge, Mysore, Karnataka State on 9.9.1991 praying for a judgment and decree in their favour for a partition of the properties mentioned in the schedule to the plaint in the said suit, and the plaintiff's claiming a total share of 6/12 in the said properties. The schedule properties, being 6 small houses built on a site measuring 60 feet X 40 feet and having 2 shops in the same premises and also a main building measuring 40 feet X 40 feet built on a site measuring 90 feet X 120 feet as the description of the suit schedule properties had been made by them. The suit was contested by the petitioner and the other defendants by filing written statements.

By his judgment and decree dated 23.1.1998 the learned Principal Civil Judge, Mysore, who tried and heard the said suit partly decreed the suit holding that each of the plaintiffs 1 to 6 in the suit was entitled to 120th share "in the suit property" subject to the condition that the plaintiffs ought to implead the children of the deceased Sahukar Subbanna borth through his 2nd wife, while instituting final decree proceedings pursuant to the said preliminary decree for partition ordered on 23.1.1998.

The petitioner and also his two brothers by names J. NandaKumar and Dr. M.S. Dhruva Kumar commonly appealed therefrom under Section 96 of the Code of Civil Procedure, 1908 in R.F.A. No.358/1998 before the Hon'ble High Court of Karnataka, Bangalore.

On 13.8.1998 the appeal was admitted for hearing; and an

interim order staying the passing of the final decree in pursuance of the preliminary decree for partition was passed by a Division Bench of the Hon'ble High Court. The proceedings had been adjourned from time to time for steps being taken to serve the unserved respondents and for filing the required paper books in the appeal. Quite unfortunately the appeal stood dismissed for default of appearance of the learned counsel who represented the petitioner and the two others, on 25.3.1999.

The Original Suit was being defended, and the first appeal was being prosecuted on behalf of all the defendants, by J. Nandakumar the elder brother of the petitioner who was the power of attorney holder of the petitioner herein, the said J. Nandakumar died on 12.12.2005. it seems that he also did not have knowledge of the dismissal for default of the appeal. The petitioner who came to know of the dismissal of the appeal, after the death of J. Nandakumar, filed an application on 14.9.2005 supported by his affidavit praying for restoration of the appeal by recalling the order of dismissal for default passed on 25.3.1999, he even tendered an unconditional apology and expressed his regard for negligence shown in the protection of the appeal. The required paper books were also filed on 16.1.2007. Unfortunately the application for recalling was also dismissed on 123.2.2007, for non-prosecution, almost five weeks after the required paper books were filed it was not within the knowledge of the petitioner, I.A. No.1/2007 filed by his former counsel, supported by his affidavit the petitioner herein came to know of the same on 21.11.2008. I.A. No.2/2007 was also another application for condoning the delay in filing the application for recalling the order of dismissal. Both the applications stood dismissed on 23.2.2007, the further application for recalling the order of dismissal of the applications for recalling also stood dismissed on 21.11.2008. Thereupon the petitioner filed through a different counsel an application in Misc. Civil No.101/2009 requesting for recalling the order of dismissal passed on 21.11.2008. The said application has

been dismissed by the impugned order dated 1.7.2009 of a Division Bench of the Hon'ble High Court, aggrieved thereby this Special Leave petition is presented.

26.6.1943:	Suit Property was acquired under Registered Sale Deed from Venkataramasetty to M.C. Subbanna father of the appellants No.1-3 and respondents No.1-8 and wife of respondent No.9.
23.3.1967:	Application by Lalithamma for seeking khata declaration to the Mysore Municipality Council.
7.4.1967:	Endorsement of Notice issued to Lalithamma by Mysore Municipality Council saying Khatha was transferred to her name.
12.11.1967:	A certain Mamballi Sahukar Subbanna seeking partition of whose estate, the respondents 1 to 6 herein filed an Original Suit.
9.9.1991:	The respondents 1 to 6 brought a suit in O.S. No.208/1991 in the Court of the Civil Judge, Mysore, later posted before the Principal Civil Judge, Mysore.
19.9.1992:	The petitioner and three other defendants in the suit filed their written statement of defence in the suit.
27.1.1997:	An additional Written Statement was filed by the 5th defendant.

23.1.1998: The aforementioned suit was partly decreed in favour of the respondents 1 to 6.

20.7.1998: The judgment and decree were appealed from by the petitioner and his two brothers.

22.7.1998: The appeal stood adjourned by a week on account of the absence of the counsel for the petitioner and his brothers who were the appellants in the said appeal.

13.8.1998: A Division Bench of the Hon'ble High Court of Karnataka admitted the said appeal and stayed the passing of the final decree in pursuance of the preliminary decree for partition.

28.8.1998: The appeal was adjourned for furnishing the correct address and fresh process fee for service of notice on the unserved respondents.

25.3.1999: The appeal stood dismissed for default of appearance and the non-filing of the required paper books.

12.12.2004: J. Nandakumar – the petitioner's elder brother who was the 1st appellant in the aforementioned R.F.A. died.

14.9.2005: The petitioner who came to know of the dismissal of the appeal filed an application for recalling the order of dismissal, supported by his affidavit.

14.2.2006: The First Appeal was again dismissed for default for non-filing of the required paper books.

16.1.2007: Paper books were filed.

23.2.2007: The applications for restoration of the appeal and condonation of delay in filing of restoration applications were both dismissed for default.

21.11.2008: The further application for recalling the order dated 23.2.2007 also stood dismissed vide **Annexure-P1**.

01.01.2009: The petitioner filed an application in Misc. Civil No. 101/2009 for recalling the order dated 21.11.2008 vide **Annexure-P2**.

1.7.2009: The said application/Misc. Petition for recalling has been dismissed, holding that the Hon'ble High Court is "of the opinion that, if recally appellants are aggrieved by the order dated 21.11.2008 they have to challenge the same before the Hon'ble Supreme Court" and "without doing so the present application is filed to recall the order passed by a Co-ordinate Bench on merits, therefore we do not seek any merits in this application, accordingly petition is dismissed"

Sd/- K.L. Manjunath J

Sd/- C.R.Kumaraswamy J".

17.9.2009: Aggreived thereby this Special Leave Petition is filed.

IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Order XVI Rule 4(1)(a)
Civil Appeal Jurisdiction)

SPECIAL LEAVE PETITION

(Under Article 136 of the Constitution of India)

Special Leave Petition (Civil) No._____/2009

1. Arising from R.F.A. No.358/1998

POSITIONS OF PARTIES

	In the High Court	**In this Court**
In the matter of :-		
Sri.M.S. Vijayakumar, aged 56 years, s/o. late M.C. Subbanna, residing at No.1147, Railway station Road, Chamarajapuram, Mysore – 570 004.	3rd Appellant	Petitioner
And:-		
1. Rohini, w/o. Thammanna, major in age, Residing at Door No.813, 6th Cross, 5th Main, Magadi Chord Road, Vijayanagar, Bangalore – 560 040	1st Respondent	1st Respondent

2. Smt. Subbalakshmi, w/o. S.S. Gundaiah, major in age, Residing at No.282/2, Gurukrupa, 38th Cross, 14th Main Road, 14th "D" Cross, Jayanagar, Bangalore – 560 041	2nd Respondent	2nd Respondent
3. Smt. Sunandamma, w/o. Lokanna, major in age, R/at Door No.99, 4th Cross, Udayagiri 1st Stage, Mysore – 570 019	3rd Respondent	3rd Respondent
4. Smt. Vasundaramma, w/o. late Appaji, major in age, No.1147, Railway Station Road, Chamarajapuram, Mysore – 570 004	4th Respondent	4th Respondent
5. Smt. Parvathamma, w/o. Venkatesh, major in age, R/at Near Hotel Dasprakash Paradise, Yadhavagiri, Mysore.	5th Respondent	5th Respondent
6. Smt. Savithri, w/o. Srinivas, major in age, R/at Behind Door No.1147, Railway Station Road, Chamarajapuram, Mysore – 570 004	6th Respondent	6th Respondent
7. Sri. M.S. Upendra Kumar, S/o. M.C. Subbanna, major in age, Ex.Lipton Tea Agent, Gundlupet Town, Gundlupet.	7th Respondent	7th Respondent

8. Smt. Sundaramma,
d/o. late M.C. Subbanna,
major in age,
Mentally infirm by guardian
S. Nandakumar,
R/at C/o. Vasundaramma,

No.1147, Railway Station Road,
Chamarajapuram,
Mysore – 570 004 — 8th Respondent — 8th Respondent

9. Sri. Chandru,
Husband of late Sudhamani,
D/o. M.C. Subbanna,
Dead by LR's Bharatesh,
major, s/o. Chandru and
Sudhamani,
C/o. M.S. Dhruvakumar,
No.32, Robertson Road,
Frazer Town,
Bangalore – 560 008 — 9th Respondent — 9th Respondent

10. Dr.M.S. Dhruvakumar,
s/o. late M.C. Subbanna,
major in age,
R/at Door No.32,
Robertson Road,
Frazer Town,
Bangalore – 560 008 — 2nd Appellant — 10th Respondent

To,

The Hon'ble Chief Justice of India,
and his Companion Justices of the
Hon'ble Supreme Court of India,
New Delhi.

THE HUMBLE PETITION OF THE PETITIONER ABOVE NAMED

1. **MOST RESPECTFULLY SHOWETH AS FOLLOWS**:-

The present Special leave Petition arises from the Order dated 1.7.2009 passed by a Division Bench of the Hon'ble High Court of Karnataka on a Misc.Civil Petition No.101/2009 in R.F.A.

No.358/1998 on its file, which the said Misc.Petition for recalling the order dated 21.11.2008 dismissing the said R.F.A. for default has also been dismissed, opining that if aggrieved the said order has to be challenged before this Hon'ble Court.

2. **QUESTIONS OF LAW** :-

The following substantial questions of law of general public importance arise fro consideration by this Hon'ble Court:

A) Whether the Misc.Petition for recalling the earlier order of dismissal, which was not on the merits of the appeal but only on the ground of non-appearance of the counsel for the petitioner was meritless and the said order of dismissal for default passed on 21.11.2008 could be or had to be challenged before this Hon'ble Court, without seeking the said order being recalled by the very court which has passed the same ?

B) Whether the order questioned herein is tenable in view of the peculiar facts and circumstances of the case and in particular the cause shown by the petitioner for the dismissal of the appeal and the justification for recalling the same ?

C) Whether any party to a proceeding represented by a counsel to be deprived of having his/her case heard on its merits, failure or negligence of the counsel concerned ?

D) Whether in the facts and circumstances of the case as also in a given case it would be justified that the petitioner in the instant case or any person similarly situated like him could be denied a hearing of his cause on merits on account of remissness or failure of justice of the parties concerned?

3. **DECLARATION IN TERMS OF RULE 4(2)** :-

The petitioner states that no other petition seeking leave to appeal has been filed by him against the judgment questioned in this Special Leave Petition, previously.

4. **DECLARATION IN TERMS OF RULE 6** :-

The Annexures P1 and P2 produced alongwith the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. **GROUNDS** :-

Leave to appeal is sought by the petitioners, on the following grounds.

I. The request of the petitioner for recalling the order of dismissal of the appeal for non-prosecution has resulted in a negation of justice to him.

II. The finding of the Hon'ble High Court that the order of dismissal of the appeal had to be questioned before this Hon'ble Court and the application for recalling the said order was meritless is not suitable in law.

III. The Hon'ble High Court has unfortunately not dealt with and considered the sufficient cause that had been shown by the petitioner for the default in appearance and the justification for restoring the appeal to file.

6. **GROUNDS FOR INTERIM RELIEF** :-

NIL

7. **MAIN PRAYER** :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) GRANT Special Leave to appeal to the petitioner against the impugned order dated 1.7.2009 of a Division Bench of the Hon'ble High Court of Karnataka at Bangalore, in Misc. Civil No.101/2009 in R.F.A. No.358/1998 on its file;

and

b) PASS such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the award of the costs of the proceedings althrough, and in the interest of justice and equity.

8. **PRAYER FOR INTERIM RELIEF** :-

NIL

New Delhi
Date:

Advocate for the Petitioner